

EXHIBIT B

[**Excerpt from Summary Judgement hearing 06/28/24 #23-2-11352-7**]

COURT: "I think it's my question for you as what is your position as to your strongest legal argument as to why summary judgement should be granted today."

GASS: "All of these issues have been addressed by a court, they've been adjudicated. Mr. Bennett had his opportunity to present this to the court in the domestic violence hearing, the court heard him, and found domestic violence had occurred and now we're just re-litigating the same issues that were already litigated, and at some point, Mrs. Manning and the child need to be free from litigation brought by Mr. Bennett."

COURT: "So you raise res judicata and collateral estoppel, correct?"

GASS: "Yes I do."

**(the "domestic violence hearing" Ms. Gass refers to is cause# 22-2-09380-3)]

[**EXCERPT FROM DV PROTECTION ORDER HEARING (8/5/2022) #22-2-09380-3**]

THE COURT: "I do want to be clear as to what these proceedings are about because some of what was filed really does not -- is not relevant to the issue that's before me, which is whether or not to grant a protection order to the petitioner and the minor child that she also included on the petition.

So the -- the motion to appoint a guardian ad litem, for example, that is not something that this court has the authority to do. That's not part of the protection order statute. So anything that is beyond the scope of why we're here is not going to be something that I want you to focus on in your testimony.

I just wanted to be clear about that."

THE RESPONDENT: "I did correct the venue on that, Your Honor. I refiled in district court with those other matters."

THE COURT: "All right. I'm just being clear about the issues that are before me and the things that are not."

THE RESPONDENT: "Understood."

**(The matters I refiled became cause# 23-2-11352-7, then
appeal# 87007-6, and which Ms. Gass claims were adjudicated)]